



Notification Waiver Determination

Australian Retirement Trust – Westfield Mt Gravatt

Acquisition	Australian Retirement Trust Pty Ltd as trustee for Australian Retirement Trust (ART) (via wholly owned investment vehicles managed by QIC Limited and/or its related bodies corporate (QIC)) propose to acquire a 50% interest in the Westfield Mt Gravatt shopping centre (the Property) (together with interests in certain ancillary and incidental non-rental income streams in connection with and derived from the ownership of the Property, the Target), as described in the transaction documents provided as part of the application (the Acquisition). QIC Investments No.5 Pty Ltd as trustee for Mondrian Hold Trust applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	25 August 2026

Parties to the Acquisition	The acquirer, ART, is an Australian superannuation fund that has invested over \$350 billion in retirement savings for more than 2.4 million members (as at 30 June 2025). ART has limited minority interests in a small number of shopping and retail centres in Queensland, including in the Brisbane area. QIC is an Australian institutional investment manager established in 1991 by the Queensland Government. QIC specialises in alternative asset classes including infrastructure, real estate, private equity, private debt, natural capital, and liquid markets, serving both government and non-government institutional clients. As of 30 June 2025, QIC managed approximately \$137 billion in assets under management. Scentre Group is an ASX-listed Australian stapled group established in 2014 following its demerger from Westfield Group. Scentre owns, develops and manages a portfolio of 42 Westfield shopping centres across Australia and New Zealand, including Westfield Mt Gravatt. Its business encompasses property investment, development, design, construction, leasing and asset management. The Target consists of 50% interest in the Property and certain associated non-rental income streams derived from Westfield Mt Gravatt, a large shopping centre in Mt Gravatt, Brisbane. Westfield Mt Gravatt contains over 380 premises, including the department store Myer, over 100 clothing and accessory stores, around 15 entertainment venues, around 115 food and drink premises, a
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	dedicated auto shop, an approved early education centre, and seven bank branches.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is limited horizontal overlap between ART and Westfield Mt Gravatt in the supply of retail space in shopping centres to retailers and the supply of shopping centre amenities to shoppers in the south-east metropolitan Brisbane area b. there are alternative shopping and retail centres in south-east metropolitan Brisbane c. any increment to ART's shares of revenue in the supply of out-of-home advertising opportunities, gift cards, and ancillary and incidental shopping centre services is low d. there are alternative suppliers of advertising opportunities, gift cards, and shopping centre ancillary services. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act